Use ChatGPT to Take Stock of Your Parent's Legal Documents

Four prompts to list what's in place, note who is named, prepare the conversation with your parent, and gather the questions for an attorney.

Where you are

Dad is managing fine. You know he signed a will years ago and you think there's a power of attorney somewhere, but you've never seen either one, and you're not sure what else there is.

This guide gives you four ChatGPT prompts to organize what you already know and to see what you don't know yet. It is preparation, not an assessment. Use only information you have permission to share, with names and account numbers removed. The AI organizes and drafts; it does not give legal advice, interpret documents, or decide. Rules vary by state. Bring legal questions to an elder law attorney.

What you'll have at the end

You have a dated list of the documents that exist, where they're kept, and who they name, plus the questions to raise with your parent and with an elder law attorney.

A one-page inventory: Documents in place, Documents missing or not found, Who is named, and Questions we need answered, with who to ask.

Before you start

- A list, from memory, of the legal documents you believe your parent has signed.
- Where you think each one is kept, and who might have a copy.
- A time to talk with your parent. Their wishes come first, and you don't need every paper in hand to start.

PROMPT 1

List what's already in place

WHY THIS MATTERS

Most families know a will was signed at some point. Fewer could say where it is, when it was signed, or what else was signed with it. A dated list is the starting point for everything else.

WHAT YOU'LL NEED

From memory or from the file drawer: each document you believe exists, roughly when it was signed, and where it's kept.

COPY THIS PROMPT

> Here are the legal documents I believe my father has, with what I know about each one (type, approximate date signed, where it is kept, who has a copy):

> [PASTE YOUR LIST]
>
> Using only what I've written, make a table: document, date signed, where it is kept, who has a copy, and whether I've actually seen it. Then list the common document types I haven't mentioned (will, trust, financial power of attorney, healthcare directive, deeds, beneficiary forms) under NOT MENTIONED. Do not tell me what any document means or whether he needs one he doesn't have.

WHAT TO LOOK FOR

An inventory that separates what you've seen from what you've only heard about.

WHAT TO DO NEXT

Ask your parent about the items you haven't seen, and add what you learn.

PROMPT 2

Note who is named, and what has changed since

WHY THIS MATTERS

Documents name people: an agent, a successor, a trustee, a healthcare decision-maker. Families change after documents are signed. Whether a document still fits is a question for an attorney, but you can line up the facts.

WHAT YOU'LL NEED

For each document, who is named, if you know, and the family changes since it was signed: a marriage, a death, a move, a sale.

COPY THIS PROMPT

> Here is who each of my father's documents names, as far as I know, and what has changed in the family since each was signed:
>
> [PASTE YOUR NOTES]
>
> Using only what I've written, list each document, the date, who it names, and the changes since that date. Where I didn't say who is named, add it to a list called STILL TO FIND OUT. Do not tell me whether a document is outdated, valid, or sufficient; put those under QUESTIONS FOR AN ATTORNEY.

WHAT TO LOOK FOR

Dates and names side by side, with the judgment calls set aside as questions.

WHAT TO DO NEXT

Fill in the still-to-find-out list the next time you have the documents in hand.

PROMPT 3

Prepare the conversation with your parent

WHY THIS MATTERS

These are your parent's documents and your parent's decisions. The conversation goes better when they can take part fully and when you arrive with questions rather than conclusions.

WHAT YOU'LL NEED

The results of the first two prompts, and a sense of what you don't know about your parent's wishes.

COPY THIS PROMPT

> Here is what I've organized about my father's legal documents:
>
> [PASTE THE RESULTS OF PROMPTS 1 AND 2]
>
> Help me prepare for a conversation with him. Write eight to ten open questions I could ask about his wishes: who he wants making financial decisions and healthcare decisions if he ever needs help, where he keeps his papers, and who he wants to know about them. Keep the questions respectful and neutral. Do not suggest what his answers should be or what documents he should sign.

WHAT TO LOOK FOR

Questions that ask what he wants, not questions that lead him to an answer.

WHAT TO DO NEXT

Have the conversation when he's ready, and write down his answers in his words.

PROMPT 4

Gather the questions for an attorney

WHY THIS MATTERS

By now you have a list of facts and a list of things you can't answer. The second list is the valuable one. It's what an elder law attorney is for.

WHAT YOU'LL NEED

Everything from the first three prompts.

COPY THIS PROMPT

> Here is everything I've gathered about my father's legal documents and wishes:
>
> [PASTE EVERYTHING FROM PROMPTS 1 TO 3]
>
> Give me one page with four headings: DOCUMENTS IN PLACE, DOCUMENTS MISSING OR NOT FOUND, WHO IS NAMED, and QUESTIONS WE NEED ANSWERED. Under the last heading, mark each question with who should answer it: my father, family, an elder law attorney, a Medicaid planner, or not sure. Do not answer the legal questions or recommend a trust, a transfer, or any other strategy.

WHAT TO LOOK FOR

A dated one-page inventory with the open questions assigned.

WHAT TO DO NEXT

Keep the page. It's the start of the next step below.

See where the documents fit in the bigger picture

A document inventory covers one part of planning ahead. The next step is the planning interview, which produces a free planning report you can bring to your Medicaid planner and to an elder law attorney.

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